

their *cestuis que trust* to postpone the sale arbitrarily to an indefinite period. The trustees cannot by such postponement vary the relative rights of the tenant for life and remaindermen, and so interfere with the settlor's intention (*f*). If trustees for a length of time, as for twenty years, neglect without any sufficient reason to sell, they will be answerable for any depreciation, and be decreed to account for interest instead of rents (*g*).

8. **Trust to sell within a limited period.** — If the trust be “with all convenient speed and *within five years*,” to sell the estate and apply the funds in payment of debts, &c., the proviso as to the five years is considered as directory only, and the trustees can sell and make a good title after the lapse of that period. The Court could scarcely impute to the settlor the intention that the sale at the end of [*425] the five years should be made *by the Court, which would be the case if the power in the trustees were extinguished (*a*).

[9. **Cestuis que trust all sui juris.** — A trust for sale is not put an end to by reason of all the persons beneficially interested becoming *sui juris*, for any one of the *cestuis que trust* has a right to insist on the trust being carried out, but if they all agree to take the property as realty, the trust for sale is extinguished (*b*).]

10. **Trustee for sale may not grant leases.** — In a case where the trustees had endeavoured for some time to sell, and not having succeeded, they agreed to execute a *lease*, the Court, on a bill filed by the trustees, to compel specific performance, refused to decree the lease, as the trust for sale did not *primâ facie* imply a power to grant leases (*c*). And so *executors* who are *quasi* trustees for sale, would, under special circumstances only, be justified in granting a lease (*d*); for

(*f*) See *Walker v. Shore*, 19 Ves. 391; *Hawkins v. Chappel*, 1 Atk. 623.

(*g*) *Fry v. Fry*, 27 Beav. 144; *Patenden v. Hobson*, 1 Eq. Rep. 28.

(*a*) *Pearce v. Gardner*, 10 Hare, 287; and see *Cuff v. Hall*, 1 Jur. N. S. 973; *De la Salle v. Moorat*, 11 L.

R. Eq. 8; [*Edwards v. Edmunds*, 34 L. T. N. S. 522.]

[(*b*) *Biggs v. Peacock*, 22 Ch. D. 284; *Re Tweedie and Miles*, 27 Ch. D. 315.]

(*c*) *Evans v. Jackson*, 8 Sim. 217.

(*d*) *Hackett v. M'Namara*, Ll. & G. Rep. t. Plunket, 283.